

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RUMESHA AHMED WHITFIELD,

Petitioner

VS.

JAMES ALISTAIR WHITFIELD,

Respondent

) Case Number: FDI-25-800955

) Hearing Date: August 6, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

PETITIONER'S REQUEST FOR THE COURT TO ISSUE A WORK SEARCH ORDER AND
GAVRON ADMONITION FOR RESPONDENT, AND RESPONDENT'S REQUEST FOR REVIEW
OF TIMESHARE AND CUSTODY AND CHILD AND SPOUSAL SUPPORT, AND PETITIONER'S
REQUEST FOR A LONG-CAUSE SETTING RE: CUSTODY AND TIMESHARE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Custody and Parenting Time

A. Procedural History

- 1) Rumesha Ahmed Whitfield (Mother) and James Whitfield (Father) have one minor child together, Berenice (DOB 8/3/2020, age 6).
- 2) In a 3/9/2026 Stipulation and Order, the parties agreed to "joint parenting" of Berenice while living together "as they have done previously" and also agreed that once Father moves out of the family home, he will have parenting time every weekday from 2PM to 6PM (Fridays until 7:30PM) and Saturday from 8AM to 6PM. (The parties also agreed he would care for the family dog 2 days a week, between 8 and 9AM before the dog's morning walk and returning him 2 days

1 later after the dog's morning walk.) The parties reached various other agreements relating to
2 financial issues. The Court set the matter for a review hearing on all issues for 8/6/2026.

3 3) The Court has received and reviewed the parties' update declarations and their requests and
4 responses regarding an evidentiary hearing and a child custody evaluation or brief focused
5 assessment (BFA). Father states, among other things, that he has not yet been able to move out of
6 the family home because he is not employed and is not receiving spousal support. He requests an
7 order for a 2-2-3 parenting time schedule with a "brief step-up plan." He states that Mother's
8 concerns about his physical and cognitive limitations are overstated and that he is capable of
9 caring for Berenice. He states he generally sees Berenice every day before and after camp and for
10 dinner and spends time with her on either Saturday or Sunday. He states he took her to New York
11 for 5 days in October 2025 and to the UK for 10 days in July 2026 without incident. Father
12 opposes Mother's request for an evidentiary hearing on custody matters; alternatively, he asks for
13 a child custody evaluation or BFA pending and temporary custody orders pending the evidentiary
14 hearing if one is ordered.

15 4) Mother states that when the parties entered into the Stipulation and Order in February 2026 (filed
16 3/9/2026), the parties' understanding was that Father would be moving out of the family home
17 shortly thereafter and that the Court would have 6 months until the 8/6/2026 review hearing to see
18 how Father's parenting time was going before issuing any further custody and parenting time
19 orders. She states that because Father has not moved out and has therefore not yet exercised the
20 parenting time set forth in the Stipulation and Order, there is no need for any modification of his
21 parenting time at this time. She asks that in the event the Court is inclined to increase Father's
22 parenting time, she would like an evidentiary hearing on custody and parenting time.

23 **B. Findings and Orders**

24 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
25 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
26 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
27 child is the United States.

28 2) The Court finds it is in Berenice's best interest to maintain the custody and parenting time orders
29 set forth in the 3/9/2026 Stipulation and Order. The parties reached an agreement about what

Father's parenting time would be once he moved out of the family home and requested a review hearing for the Court to review custody and parenting time. Father has not yet moved out of the home and has not yet exercised his parenting time; thus, the Court does not find good cause to modify the 3/9/2026 Stipulation and Order at this time. Father's request for a child custody evaluation or BFA and Mother's request for an evidentiary hearing are denied without prejudice. The custody and parenting time issues are set for a further review hearing on **12/1/2026 at 9AM in Department 404**. At least 10 days before the review hearing, each party shall file an update declaration informing the Court whether Father has moved out of the family home, whether he has begun exercising the parenting time the parties agreed to in the 3/9/2026 Stipulation and Order, and what the parties' requests are regarding custody and parenting time going forward.

II. Child and Temporary Spousal Support

A. Procedural History

- 1) The 3/9/2026 Stipulation and Order outlines the following agreements regarding child and temporary spousal support:
 - a. Father has no claim to retroactive child and spousal support and waives the same.
 - b. No child and spousal support is due to Father until he moves out of the family residence and establishes his own residence. At that time and going forward, Mother shall pay Father \$905 per month in guideline child support and \$3,823 per month for temporary guideline spousal support, for a total of \$4,728 per month, but these payments will terminate on 3/18/2026 due to Mother's loss of employment effective that date.
 - c. On Father vacating the family residence and establishing his own residence, the parties will immediately begin dividing all profits from community property investments. Within 14 days of receipt of such profits, Mother shall transfer to Father his 50% share. Mother shall provide Father with an accounting of the same demonstrating any expenses that were paid and/or profit/income that was received.
 - d. Mother's request for the court to issue a work search order and Gavron admonition for Father, and Father's request for review of timeshare and custody and child and spousal

1 support and Mother's request for a long cause setting re custody and timeshare is set for
2 8/6/2026.

- 3 2) On 7/30/2026, Father filed a Status Declaration stating he has found it extremely difficult to
4 secure alternate housing because he has no employment income and has not been receiving any
5 spousal support. Father states he has been forced to use the little savings he has to pay for living
6 expenses because Mother refuses to pay support to him while they are living together. Father
7 states Mother has demanded that he vacate the residence by 9/30/2026. Father states he is waiting
8 to receive an inheritance from his late father's estate in the amount of \$90,000. Father states he
9 suffered a traumatic brain injury in December 1998 as the result of a serious motor vehicle
10 accident and he experiences difficulty with his memory, information processing, balance, and
11 mobility and he suffers chronic headaches. Father states he last held a position as a product
12 manager for a technology and media company but was terminated in August 2024. Father states
13 he is currently working with a vocational rehabilitation counselor through Sutter Health's Pacific
14 Employment Program (PEP) which assists adults with traumatic brain injuries in preparing for
15 and obtaining active employment. Father states he and his counselor are evaluating whether there
16 is any type of employment he is capable of performing. Father requests the Court deny Mother's
17 request to subject him to a seek work order while he is working with his PEP counselor. Father
18 also states that a Gavron warning is not appropriate because he is only capable of working within
19 the limits of his disability and he is unlikely to reach an earning capacity approaching the marital
20 standard of living. Father states he needs support now in order to relocate.
- 21 3) On 7/30/2026, Father filed an Income and Expense Declaration.
- 22 4) On 7/30/2026, Father filed a Statement of Support Calculation.
- 23 5) On 7/30/2026, Mother filed an Update Declaration. Mother agrees that Father has not been able
24 to secure alternate housing. Mother states Father's initial application to the federal government
25 and state agencies for disability, and subsequent appeal, according to his attorney, have both been
26 rejected. Father has filed a second appeal which could take up to 24 months to receive a decision.
27 Mother believes Father is able to secure employment "given the rejection of the disability
28 applications." Mother states, "until the court can evaluate the testimony and evidence as to
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1 husband's earning capacity, neither spousal nor child support can be determined; and for this
2 reason, wife requests that the matter be set for the long cause hearing."

- 3 6) On 7/31/2026, a Stipulation and Order Re: Health Insurance was entered which provides that
4 Mother shall maintain Father as a covered dependent under her health insurance plan available
5 through her employer Wells Fargo so long as such coverage remains available and until entry of
6 Judgment of Dissolution or Father obtains his own coverage through a job or otherwise. Father
7 shall reimburse Mother for premiums in the amount of \$325.96 per month which shall be paid to
8 Mother no later than the 15th day of every month and Father shall reimburse Mother for his pro-
9 rata share of the actual annual deductible incurred as well as out-of-pocket medical expense
10 incurred. The parties further agree, "Petitioner shall not deduct any claimed health insurance
11 premiums, deductible amounts, or out-of-pocket medical expenses from any spousal support
12 payments otherwise due to Respondent."

- 13 7) Mother did not file a Statement of Support Calculation or Income and Expense Declaration.

14 **B. Findings and Order**

- 15 1) The Court finds that the 3/9/2026 Stipulation and Order was predicated on an expectation that
16 Father would be able to obtain alternate housing. This expectation has proven to be untrue. Father
17 has been unable to secure alternate housing despite his efforts, in part because he is not currently
18 earning an income or receiving support. The Court finds good cause to award temporary spousal
19 support to Father at this time given that Father needs support in order to relocate, Mother has the
20 ability to pay, and Father should not be required to exhaust his savings to pay his living expenses
21 while he is exploring his earning capacity. Father is actively working with his PEP counselor to
22 evaluate the types of employment he is capable of performing, and the Court does not find that
23 Father is presently shirking his obligation to become self-supporting or to support the parties'
24 child. The Court will revisit these issues at the next review hearing.
- 25 2) Effective 8/1/2026, in accordance with the XSpouse calculation attached hereto and incorporated
26 herein, Mother shall pay Father \$4,646 in temporary guideline spousal support per month. One-
27 half shall be due and payable by the 1st and one-half shall be due and payable by the 15th of each
28 month.

- 3) So long as Father remains living in the marital residence and until Father vacates the marital residence, Mother may deduct from Father's monthly spousal support one-half of the carrying costs for the marital residence, including mortgage, property taxes, insurance, as well as one-half of utilities. Mother shall forward to Father the invoices for any items she deducts from Father's monthly support.
- 4) Support for August 2026 shall be paid no later than 8/15/2026.
- 5) The Court declines to order child support at this time given that the parties are currently living together. Once Father vacates the marital residence and begins to exercise the timeshare schedule set forth in the 3/9/2026 Stipulation and Order, Mother shall pay to Father \$1,001 per month in guideline child support in accordance with the attached XSpouse calculation.
- 6) The Court declines to issue a work search order or Gavron admonition at this time. The Court will review child support, temporary spousal support, Mother's request for a work search order, and Mother's request for a Gavron warning at the review hearing on **12/1/2026 at 9:00 AM. in Department 404.**
- 7) At least 20 calendar days prior to the next hearing date, both parties shall file and serve updated Income and Expense Declarations.
- 8) At least 20 calendar days prior to the next hearing date, Father shall file and serve a declaration updating the Court regarding: (1) his efforts to secure alternate housing; (2) his progress with his PEP counselor; (3) any conclusions reached regarding the types of employment he is capable of performing; (4) his anticipated earning capacity; and (5) any material updates regarding child and temporary spousal support. If available, Father shall attach a letter or report from his PEP counselor.
- 9) At least 10 calendar days prior to the next hearing date, Mother shall file and serve a declaration responding to these issues and providing any other relevant updates.
- 10) At least 10 calendar days prior to the next hearing date, both parties shall file and serve Statements of Support Calculation.

1 **III. Preparation of Order**

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3 1) Mother's attorney shall prepare the Findings and Order After Hearing.

4 2) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
5 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
6 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
7 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
8 proposed order after hearing directly to the court. Failure to submit the order after hearing within
9 10 days may allow the other party to prepare a proposed order and submit it to the court in
10 accordance with CA Rules of Court, Rule 5.125(d).

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Fixed Shares	Father	Mother	Monthly figures	Cash Flow			
#of children	0	1	2026		Guideline	Proposed	
% time with NCP	26.00 %	0.00 %		Comb. net spendable	15464	15464	
Filing status	SINGLE	HH/MLA	GUIDELINE	Percent change	0%	0%	
# exemptions	1 *	2 *	Nets(adjusted)	Father			
Wages+salary	0	22917	Father	0	Payment cost/benefit	5647	5647
Self-employed income	0	0	Mother	15464	Net spendable income	5647	5647
Other taxable income	0	0	Total	15464	Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	37%	37%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS	1001	Total taxes	0	0
401(k) employee contrib	0	1146	S.Clara SS	4646	Dep. exemption value	0	0
Adjustments to income	0	0	Total	5647	# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	0	0
CS paid prev marriage	0	0			Mother		
Health insurance	0	510			Payment cost/benefit	-5647	-5647
Other medical expense	0	0			Net spendable income	9817	9817
Property tax expense	0	271			Change from guideline	0	0
Ded interest expense	0	337	Proposed		% of combined spendable	63%	63%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	0%
Misc tax deductions	0	0	CS	1001	Total taxes	6943	6943
Qual bus income ded	0	0	SS	4646	Dep. exemption value	0	0
Required union dues	0	0	Total	5647	# withholding allowances	0	0
Mandatory retirement	0	0			Net wage paycheck	13366	13366
Hardship deduction	0 *	0 *	Saving	0			
Other GDL deductions	0	0	Releases	0			
Child care expenses	0	0					

Mother pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information

	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	25 - 75	0	0	0	Father	1001	Mother	1001	Mother
	26 - 74	0	0	0	Father	1001	Mother	1001	Mother